

August 25, 2015



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12092
(SEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR §107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 4.3 materials in DOT 4BW cylinders which are visually inspected externally instead of the required hydrostatic retest. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 180.205 in that a periodic external visual inspection is performed instead of the required hydrostatic retest and internal visual inspection; and the marking requirements in §§ 172.203(a) and 172.301(c), except as specified herein.
5. BASIS: This special permit is based on the application of KMR Industries, Inc., dated April 21, 2015, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Alkali metal alloys, liquid n.o.s	4.3	UN1421	I
Alkali metal dispersions or Alkaline earth metal dispersions	4.3	UN1391	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 4BW240 or 4BW260 cylinder. Each cylinder must:

- (1) have the openings closed by use of plugs or flanges;
- (2) be protected externally by a suitable corrosion resistant coating;
- (3) not exceed 1000 pounds water capacity;
- (4) not be liquid full at 130°F; and
- (5) not be pressurized. Valves and safety relief devices are not authorized. Openings must be protected by threaded caps or welded collars.

b. REQUALIFICATION - Each cylinder must be given a complete external visual inspection at least once every five (5) years in accordance with the Compressed Gas Association (CGA) Pamphlet C-6. A cylinder which fails the visual inspection must be removed from service and stamped condemned as specified in § 180.205.

c. OPERATIONAL CONTROLS:

- (1) Cylinders used under the terms of this special permit must be used exclusively for hazardous materials described in paragraph 6 of this special permit. The materials must be commercially free from corroding

components.

(2) The flash point of the organic solvent must not be less than 125°F when determined in accordance with a DOT specified test method described in § 173.120(c).

(3) Each person performing the visual inspections authorized by this special permit must have a copy of CGA Pamphlet C-6 and be familiar with its acceptance/rejection criteria, a current copy of this special permit, 49 CFR Parts 100 to 185, and other reference material required by the applicable sections of § 180.209(g) and this special permit. Tester qualifications and test reports meeting the requirements specified in § 180.215 must be maintained at each facility where testing is performed.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING - Each cylinder must be marked with the letter "E" following the month and year of the retest. The marking requirements in §§ 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, Rail freight, Cargo vessel.

10. MODAL REQUIREMENTS: No additional requirements other than as required by the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each Hazmat employee, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 Immediate notice of certain hazardous materials incidents, and § 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: RS/SG